

25STCV21590 25STCV21590

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 25STCV21590 Hearing Date: August 20, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

20, 2026 TRIAL DATE: Not set

CASE: Express Restoration Corp. v. Springtree

Skyway, LLC, et al.

CASE NO.: 25STCV21590

SPECIAL

MOTION TO STRIKE THE FIFTH CAUSE OF ACTION (SLANDER OF

TITLE)

FROM THE CROSS- COMPLAINT PURSUANT TO C.C.P. §425.16

MOVING PARTY: Plaintiff/Cross-Complainant

Express Restoration Corp.

RESPONDING PARTY: No

opposition

I. BACKGROUND

This action arises from remediation

work performed on a unified industrial complex located in Pasadena, California

at 89 N. San Gabriel Blvd., 2670–2674 E. Walnut St., and 2675 Nina St. (the “Complex”). The Complex is owned and operated by defendant Springtree Skyway, LLC (“Springtree”). Defendant Shuxun Li (“Li”) is the managing member of Springtree. In 2025, Plaintiff Express Restoration Corp. (“ERC”) provided labor, services, equipment, and materials in fire and water damage remediation work at the Complex. The work performed by ERC on the Complex was covered under an insurance policy issued to Springtree and Li by defendant Hartford Underwriters Insurance Company (“Hartford”). ERC alleges that Springtree and Li failed and refused to pay for the work in the sum of \$577,869.05, and that Hartford was negligent in issuing checks for ERC’s work on the Complex but failing to include ERC as a payee on those checks.

On December 1, 2025, ERC filed the operative Second Amended Complaint (SAC) against Springtree, Li, and Hartford for (1) foreclose mechanics lien, (2) breach of contract, (3) work, labor, and material furnished, (4) restitution/quasi-contract, (5) conversion, (6) fraud and deceit, (7) negligence, and (8) violation of Insurance Code section 570.

On April 30, 2026, Springtree and Li filed their Answer to the SAC. On the same day, Springtree filed a Cross-Complaint against ERC and Tammy Wolowski.

On June 15, 2026, ERC filed this special motion to strike the fifth cause of action for slander of title from the Cross-Complaint.

On August 10, 2026, Springtree dismissed the fifth cause of action. Springtree did not file an opposition.[1]

On August 13, 2026, ERC filed a reply.

II. DISCUSSION

The motion is moot. “[W]hen plaintiffs dismiss their cases before the trial court rules on the anti-SLAPP motion, the trial court continues to have jurisdiction over the case for purposes of deciding if the

plaintiffs are responsible for attorney fees and costs, but not to rule on the anti-SLAPP motion.” (Law Offices of Andrew L. Ellis v. Yang (2009) 178 Cal.App.4th 869, 879.)

Here, Springtree has dismissed the fifth cause of action. The court therefore has no jurisdiction to rule on ERC’s anti-SLAPP motion. Further, given that ERC has not yet filed a motion for attorney fees and costs, it is premature for this court to consider the merits of the motion.

III. CONCLUSION

The special motion to strike is MOOT.

Moving party to give notice, unless waived.

Dated: August 20, 2026

Brock T. Hammond

Judge of the Superior Court

[1] ERC’s reply indicates that it was served with a notice of non-opposition. Springtree’s notice of non-opposition has not been filed with the court.